

24STCV23097 24STCV23097

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-09-15

Motion: PLAINTIFF/CROSS-DEFENDANT JESUS RODRIGUEZ'S NOTICE OF MOTION AND MOTION TO STRIKE FIRST AMENDED CROSS-COMPLAINT

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Case Number: 24STCV23097 Hearing Date: September 15, 2026 Dept: 731

SUPERIOR COURT OF THE
STATE OF CALIFORNIA

FOR THE COUNTY OF LOS
ANGELES - CENTRAL DISTRICT

JESUS RODRIGUEZ, an Individual,

Plaintiff,

vs.

GUADALUPE DIAZ, aka, MARIA

GUADALUPE DIAZ, an individual; MARIA GUADALUPE DIAZ, Trustee of The Diaz
Family Revocable Living Trust, Dated September 7th, 2024; and DOES 1 through
50, inclusive,

Defendants.

AND OTHER PLEADINGS.

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CASE NO: 24STCV23097

[TENTATIVE] ORDER RE: PLAINTIFF/CROSS-DEFENDANT

JESUS RODRIGUEZ'S NOTICE OF MOTION AND MOTION TO STRIKE FIRST AMENDED
CROSS-COMPLAINT

Dept. 731

September 15, 2026

8:30 AM

Matter No. 15

Moving Party: Plaintiff/Cross-Defendant, Jesus Rodriguez

Joinder Parties: Cross-Defendants Rene González and Julia Molina

Opposing Party: Defendants and Cross/Complainants Maria Guadalupe Diaz, an individual, and Maria Guadalupe Diaz, Trustee of the Diaz Family Revocable Living Trust Dated September 7th, 2024

Notice: OK

Background Facts

This action arises from a dispute
in real property.

a.

First Amended Complaint

Plaintiff/Cross-Defendant Jesus

Rodriguez ("Rodriguez") sues Defendant/Cross-Complainant Maria Guadalupe Diaz ("Diaz"), both as an individual and as Trustee of The Diaz Family Revocable Living Trust, Dated September 7th, 2024, pursuant to a March 12, 2025, First Amended Complaint ("FAC") alleging claims of (1) quiet title (verified), (2) cancellation of instrument, (3) accounting, (4) unfair business practices, (5) injunctive relief, and (6) declaratory relief.

The FAC's claims chiefly arise from the following allegations, among others. Rodriguez purchased Diaz's interest in 1451 E. Vernon Avenue, Los Angeles, CA 90011 (the "subject property"), a multi-unit residential property, in February 2007 pursuant to a sale agreement giving Diaz certain rights, with the parties' agreement including the right to tenancy for several months and right to collect rents and pay mortgage on the subject property. Later, Diaz let the property fall into bankruptcy by collecting rent but failing to pay the mortgage, which Rodriguez had to remedy. Later still, after Rodriguez had acquired a full interest in the subject property, Diaz recorded a forged deed conveying the subject property to Diaz, as an individual, then transferring the property to herself as Trustee of the

Diaz Family Revocable Living Trust, thus damaging Rodriguez.

b.

First Amended Cross-Complaint

In turn, Diaz, as an individual and as Trustee, sues Rodriguez, as well as Rene Gonzalez ("Gonzalez"), Julia Molina ("Julia"), and Roes 1 through 10 pursuant to an April 24, 2026, First Amended Cross-Complaint alleging claims of (1) quiet title, (2) slander of title, (3) fraud, (4) removal of lien, (5) breach of contract, (6) tortious interference with contractual relationship, (7) violation of covenant of good faith and fair dealing, (8) intentional infliction of emotional distress, and (9) negligent infliction of distress.

The claims chiefly arise from the following allegations, among others. Diaz first acquired full interest in the subject property in 2003, specifically through deed from Diaz and her then-husband, Roberto Diaz, to Diaz as her own separate property. Sometime in late 2006, Angie Villareal ("Villareal"), a real estate agent, introduced Diaz to Israel Luna ("Luna"), who offered to lend Diaz \$200,000 as secured by the subject property. Diaz went forward with the transaction. However, Diaz, a person with a third-grade education who does not read English, was presented with a deed conveying title of the property to Luna and to Rodriguez, a person Diaz had never met, as tenants in common, which, without knowledge or any reason to believe that she was conveying the subject property, and for no consideration, she executed. The deed was then recorded. Luna moreover executed a Deed of Trust with Assignment of Rents, designating himself as trustor and Diaz as lender. In turn, Rodriguez executed a deed of trust to secure nearly \$200,000.00 in his benefit, which Rodriguez continues to assert as a lien on the subject property. Later, Diaz took an extended trip to Mexico and assigned Villareal and Luna to collect rents, hired Rodriguez as counsel in evicting a certain tenant at the subject property, and in October 2012 rented a unit to Gonzalez, with Molina living in the unit as an unnamed tenant. Then, in October 2024, Diaz attempted to evict Gonzalez and Molina, serving a three-day notice to quit and, after Gonzalez and Molina did not comply, instituted unlawful detainer proceedings. In that litigation, Gonzalez and Molina alleged that Diaz was not the property's real owner, producing a backdated 2012 rental agreement listing Rodriguez as owner, with rents being paid to Rodriguez. Rodriguez then visited Diaz stating he did not want problems and turning over a deed conveying Rodriguez's interest in the property to Diaz, which was subsequently recorded.

Rodriguez nevertheless went back to Gonzalez and Molina and executed a new agreement to pay rent monies to Rodriguez as owner.

c.

Motion Before the Court

Before the Court is Rodriguez's opposed motion to strike the FACC as a whole based on Diaz having filed the Cross-Complaint on a date after service of Diaz's Answer in the action, contravening Code of Civil Procedure section 428.50, with the FACC suffering from this defect downstream.

Motion to Strike

Meet and Confer

The Court determines that while the meet and confer efforts that preceded Rodriguez's motion were insufficient (Motion, Franco Decl., ¶¶ 4-5 [meet and confer limited to email, failing to reflect any phone call, videoconference, or in person conversation took place]; see Code Civ. Proc., § 435.5, subd. (a)), such a finding is not a basis to deny Rodriguez's motion. (Code Civ. Proc., § 435.5, subd. (a)(4) ["A determination by the court that the meet and confer process was insufficient shall not be grounds to grant or deny the motion to strike"].)

b. Legal
Standard

The court may, upon a motion or at any time in its discretion and upon terms it deems proper: (a) strike out any irrelevant, false, or improper matter inserted in any pleading; or (b) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc. § 436, subds. (a), (b); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782 ["Matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded"].)

Discussion

After review, the Court finds

sufficient grounds for relief.

The defendant can file the cross-complaint as a matter of right anytime before or at the time the answer is due, if the cross-complaint is brought against the plaintiff (i.e., a party who files either a complaint or a cross-complaint). (Code Civ. Proc., §§ 426.30, subd. (a), 428.50, subd. (a); Nels E. Nelson, Inc. v. Tarman (1958) 163 Cal.App.2d 714, 730.) The defendant must obtain leave to file a cross-complaint anytime after that date. (Code Civ. Proc., § 428.50, subd. (c); see Code Civ. Proc., § 426.50.)

Here, as reflected in the record, Diaz filed an Answer to Rodriguez's First Amended Complaint on June 11, 2025, and five days later, on June 16, 2025, Diaz filed a Cross-Complaint against Rodriguez and others. On the face of those facts, prior to filing a Cross-Complaint, Diaz should have filed a motion seeking leave of court to file a cross pleading. Here, no such request appears in the record as Diaz never made such a request, instead filing the Cross-Complaint as a matter of course, i.e., in contravention of Code of Civil Procedure section 428.50, and thus not drawn or filed in conformity with the laws of California, rendering the FACC that followed the Cross-Complaint subject to motion to strike.

Critically, as noted in Rodriguez's reply, Diaz's opposition fails to address section 428.50, focusing instead on whether service of summons took place and whether a general appearance was made, and only briefly without any elaboration arguing that "[a]ny minor [sic] procedural issues regarding the periods of time between filing the Answer and filing the Amended Cross-Complaint [sic] (3 court days) have been waived by the making [of] his General Appearance," all without differentiating why a general appearance (affecting jurisdiction over a defendant) waives statutory requirements under the Code of Civil Procedure related to the timing of filing initial pleadings in actions (§ 428.50).

Under these circumstances, relief is warranted.

d. Conclusion

Plaintiff/Cross-Defendant Jesus Rodriguez's motion to strike is accordingly GRANTED.

The June 16, 2025, Cross-Complaint
and the April 24, 2026, First Amended Cross-Complaint are ORDERED STRICKEN.

Plaintiff/Cross-Defendant Jesus
Rodriguez is ordered to give notice.

Parties who intend to submit
on this tentative must send an email to the court at smcdept731@lacourt.org indicating intention to submit on the tentative
as directed by the instructions provided on the court website at www.lacourt.org. If
the department does not receive an email indicating the parties are submitting
on the tentative and there are no appearances at the hearing, the motion may be
placed off calendar. If a party
submits on the tentative, the party's email must include the case number and
must identify the party submitting on the tentative. If the parties do not submit on the
tentative, they should arrange to appear remotely.

DATED: September 15, 2026 _____

MARK C. KIM

Judge of the
Superior Court